

Smt. Charanjeet Kaur vs Aminder Pal Singh on 20 May, 2019

Bench: Sudhanshu Dhulia, Ramesh Chandra Khulbe

IN THE HIGH COURT OF UTTARAKHAND AT NAINITAL

First Appeal No. 4 of 2015

Smt. Charanjeet KaurAppellant

Vs.

Aminder Pal SinghRespondent

With

First Appeal No. 5 of 2015

Smt. Charanjeet KaurAppellant

Vs.

Aminder Pal SinghRespondent

Present:- Mr. Piyush Garg, Advocate for the appellant/wife.
Mr. Ramji Srivastava, Advocate with Mr. Mohit Maulekhi, Advocate for the respondent/husband.

Coram: Hon'ble Sudhanshu Dhulia, J.

Hon'ble Ramesh Chandra Khulbe, J.

Hon'ble Sudhanshu Dhulia, J. (Oral) These two first appeals arise out of the judgment and decree dated 20.12.2014 passed by the learned Principal Judge, Family Court, Dehradun in O.S. No.314 of 2008.

2. First Appeal No. 4 of 2015 has been filed for setting aside the judgment dated 20.12.2014, whereby the petition of the appellant/wife seeking restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955 has been dismissed, whereas First Appeal No. 5 of 2015 has been filed by the appellant/wife against the judgment and decree dated 20.12.2014, whereby the court below has decreed the counterclaim filed by the respondent/husband and the marriage between the parties has been dissolved.

3. Meanwhile, during the pendency of these appeals, this Court was informed by the learned counsels for the parties that a settlement can be made and subsequently the matter was referred to the Registrar (Judicial) by this Court on 09.05.2019, where the parties have entered into a

settlement which has been reduced to writing. The compromise deed reads as under:-

"By the Hon'ble Court's order dated 09.05.2019, both the parties Smt. Charanjeet Kaur (appellant) and Mr. Aminder Pal Singh (respondent) appeared before me.

Both the parties have entered into mutual amicable settlement terms whereof are reduced hereunder:-

1. The judgment and decree dated 20.12.2014, passed by Principal Judge, Family Court Dehradun in O.S. No. 314 of 2008, dissolving marriage solemnized between parties dated 03.08.2003 shall remain intact.

2. The amount of permanent alimony of appellant Smt. Charanjeet Kaur is to the tune of Rs. 25,00,000/- (twenty five lacs) only.

This amount has already been paid to the appellant by way of seven demand Drafts which fact has also been mentioned in the order dated 04.05.2019, by this Hon'ble Court.

3. It was also agreed between the parties that the respondent husband will pay Rs. 2,00,000/- (two lacs) to be deposited in the name of his son Prabhnoor Singh every year for the next 7 years. An undertaking to this effect has been produced by the sister of respondent namely Smt. Arvind Goyal, who is a Govt. Servant drawing salary of approx Rs. 47,000/- and in furtherance thereof post dated cheques in favour of Prabhnoor Singh have been handed over to the appellant. The sister of the respondent also undertakes that the said cheques will not be dishonored under any circumstances. The details of the aforementioned post dated cheques are reproduced hereunder:-

a. Rs. 2,00,000/- vide Cheque No. 561267 dated 1.5.2020 drawn on State Bank of India Mussorie.

b. Rs. 2,00,000/- vide Cheque No. 561268 dated 1.5.2021 drawn on State Bank of India Mussorie.

c. Rs. 2,00,000/- vide Cheque No. 561269 dated 1.5.2022 drawn on State Bank of India Mussorie.

d. Rs. 2,00,000/- vide Cheque No. 561270 dated 1.5.2023 drawn on State Bank of India Mussorie.

e. Rs. 2,00,000/- vide Cheque No. 561271 dated 1.5.2024 drawn on State Bank of India Mussorie.

f. Rs. 2,00,000/- vide Cheque No. 561272 dated 1.5.2025 drawn on State Bank of India Mussorie.

g. Rs. 2,00,000/- vide Cheque No. 561273 dated 1.5.2026 drawn on State Bank of India Mussorie.

4. Further in pursuance of order dated 02.05.2019 the joint locker which was in the name of the appellant and the respondents Mother namely Smt. Hardip Kaur was jointly opened on 08.05.2019, by the appellant and Smt. Hardip Kaur in presence of the Bank Officials and Jewellery items lying in the locker were handed over to the appellant and thereafter, on joint application dated 08.05.2019, the joint locker has been closed.

5. The appellant also undertakes to withdraw/compound all pending Criminal and Civil cases in Dehradun District filed by her against the respondent husband and his family.

6. The respondent has filed CLMA No. 6214 of 2019 in FA No. 04 of 2015 and CLMA No. 6215 of 2019 in FA No. 05 of 2015 in which the terms and conditions of this compromise have been reduced in detail with all relevant annexures 1 to 5 and relevant papers are part of this compromise.

7. Parties will bear their own cost. The aforesaid terms which are reduced in writing herein above have been duly read over and understood by both appellant and respondent and both agree to be abide by aforesaid terms and both parties put their respective signature on this mutual settlement in the presence of their counsels today i.e., 09.05.2019 before me."

4. The settlement which has been reached between the parties before the Registrar (Judicial) bears the signatures of both the parties as well as of their counsels.

5. After hearing the parties and after perusal of the compromise deed, this Court is satisfied that an agreement has reached between the parties in terms of Order 23 Rule 3 of CPC. The suit is decreed in terms of the compromise, which shall be a part of the decree.

6. In view of the above, the first appeals stand decided accordingly.

(Ramesh Chandra Khulbe, J.) (Sudhanshu Dhulia, J.) 20.05.2019 Ankit/